SESO ENTERPRISES (PVT) LTD
versus
FUNGAI DEAN ZWINOIRA

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 13 March & 16 April 2026

Court Application

B Maunze, for the Applicant
T L Muchinga, for the Respondent

MUCHAWA J:

In this application the draft order sought by the applicant is drafted as follows:

"IT IS ORDERED THAT

1. The suspension and removal of the respondent, Fungai Dean Zwinoira, as director of Seso Enterprises (Private) Limited be and is hereby confirmed.
2. The late Robert Tatira Zwinoira be and is hereby declared the beneficial founder and economic controller of Seso Enterprises (Private) Limited within the meaning of s 2 (1) of the Companies and other Business Entities Act [*Chapter 24:31*]
3. The Board of Directors of Seso Enterprises (Private) Limited be and is hereby authorized to proceed with the lawful issuance of 1000 (one thousand) shares, or such other number as the Board may resolve, from the unissued share capital of the company, for the purpose of regularizing the ownership structure and reflecting the equitable and beneficial interests of the lawful heirs of the late Robert Tatira Zwinoira.
4. The shareholding and voting right arising from the original two (2) issued shares (held by the late Susan Zwinoira and Dr Rufaro Getrude Zwinoira) be and are hereby recognized but deemed proportionally diluted in accordance with the new share structure authorized under paragraph 3 above.
5. The 1 (one) share held by the late Susan Zwinoira shall be held in trust and shall not be exercised in any corporate decision-making processes, pending the proper appointment of an executor and administration of her estate in accordance with the law .
6. The Respondent be and is hereby interdicted and prohibited from representing himself as a shareholder, holding himself out as a director, and /or conducting or engaging in any official business on behalf of Seso Enterprises (Private) Limited, whether with third parties, clients, or service providers.
7. Costs of suit shall be borne by the respondent on an attorney- client scale,"

The application is vehemently opposed. I believe this is what led to the applicant abandoning the relief sought in para(s) 1,2,3,4 and 5 at the hearing and only pursuing paragraph 6 on the interdict.

I then heard the parties on the point *in limine* raised by the respondent and on the merits and reserved my ruling.

Before I proceed to the ruling it is important to give a brief background to this matter. At the center of the dispute is the applicant company. The deponent to the founding affidavit is the respondent's son. Whereas the deponent claims the company was established by his grandfather Robert Tatira Zwinoira, the respondent alleges that it was in fact his mother who set it up. In essence this is a family- infused company dispute.

The Point *In Limine*

The point taken by the respondent is that the deponent to the founding affidavit does not possess the requisite authority of the applicant and is on a frolic of his own as he was never authorized to represent the company nor were the proceedings authorized by the company. It is argued that the deponent cannot authorize himself to sue on behalf of the company and one Ayanda Francesca Zwinoira is not a director of the company and cannot therefore sanction the process which was initiated.

References were made to the cases of *Madzivire and ors* v *Zvavivadza & ors* 2006 (1) ZLR s14 (s) and *Dube* v *Premier Service Medical Aid & Anor* SC 73/19 in support of this contention.

When the directorship of Ayanda Francesca was challenged, the deponent to the founding affidavit admitted she is not a director in its answering affidavit.

On its part, the applicant submitted that the applicant has two directors the respondent and the deponent to the founding affidavit. A notice of an EGM was allegedly issued on 27 January 2025 and an agenda was attached in which the respondent's resignation was listed and another person would be considered. A resolution is said to have come out of the EGM.

A resolution appears on page 10 of the record. It is worded as follows:

> "SESO ENTERPRISES (PRIVATE) LIMITED
> BOARD RESOLUTION PASSED AT THE BOARD MEETING HELD ON 2 MAY 2025
> At a duly convened meeting of the Board of Directors of Seso Enterprises (Private) Limited held on 2 May 2025, the following resolution was unanimously adapted.
> 1. Representation in High Court of Zimbabwe Application.
> RESOLVED THAT, in accordance with the authority granted under the resolutions passed at the Extraordinary General Meeting held on 28 February 2025, the Board hereby designates and authorizes Mr Tatira R Zwinoira to represent Seso Enterprises (Private) Limited in the High Court of Zimbabwe in relation to the pending application concerning corporate governance matters, shareholding regularization, and director suspension. Mr Zwinoira shall have full authority to sign affidavits, file documents instruct legal counsel, and take all necessary steps on behalf of the company."

Mr *Machinga* referred the court to the EGM resolutions from page 14 to 17 where the authority to litigate is purportedly contained. He argued that this was an illegal EGM as there was no member or shareholder at the meeting. A perusal of the resolutions shows that Susan Zwinoira passed away in 2011 and there was no executor representing her estate. Dr Rufaro Getrude Celestine is noted as inactive in company affairs and living outside Zimbabwe for decades. It was resolved that the board should engage her. The deponent to the founding affidavit was chairing the EGM. It is unclear which shareholders were available at the EGM.

In *Burstein* v *Yale* 1958 (1) SA 768 (W) it was held that the general rule is that directors of a company can only act validly when assembled at a board meeting. This case was cited with approval in *Madzivire & ORS* v *Zvavivadza & ORS* 2006 (1) ZLR 514 (s) at 516 where CHEDA JA said:

> "It is clear from the above that a company, being a separate legal persona from its directors, cannot be represented in a legal suit by a person who has not been authorized to do so."

See also *Dube v Premier Service Medical Aid & Anor* SC 73/19 at para 38.

It was argued by Mr *Maunze* that there is an exception to the general rule. This was set out in the *Madzivire* case *supra* as follows,

> "An exception where a meeting of directors and a resolution would not be required is where a company has only one director who can perform all judicial actions without holding a full meeting."

In this case it has not been shown that the EGM was legally held as there was no member or shareholder in attendance. The resolution of 2 May 2025 is hinged on the resolutions from the EGM. The age old adage stated by LORD DENNING MR in *MacFOY* v *United Africa Co Ltd* [1961] 3 ALLER 1169 at 1172 hold true *in casu:*

> "If an act is void, then, it is in law a nullity. It is not only bad but incurably bad ……and every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse."

It is my finding therefore that the proceedings were not authorized by the company as the EGM was a nullity as there were no shareholders in attendance. The authority purportedly granted to the deponent which is hinged on the EGM cannot stand therefore Ayanda Francesca had no authority to sign for the company. One shareholder is deceased and her estate is unpresented whilst the other has been inactive for decades. Apologies cannot be properly registered against shareholders who are not aware of the meeting.

It is my finding therefore that the deponent to the founding affidavit is on a frolic of his own. The applicant company is not before the court. It cannot be saddled with costs.

Accordingly, the point *in limine* is upheld. The application is struck off the roll with the deponent to the founding affidavit paying costs on an ordinary scale.

MUCHAWA J:…….

Thoughts Deme Attorneys At Law, Applicant's legal practitioners
Machinga Mutandwa Legal Practitioners, Respondent's legal practitioners.